to know about the completion of the weighing activity.

II. Unascertained Goods

As already we studied that the unascertained goods are those which are not specifically identified at the time of contract of sale. The ownership in the case of unascertained goods, is transferred to the buyer subject to the fulfilment of following conditions:

a. When the Goods are Ascertained

Ascertainment is a process by which the goods to be delivered under the contract of sale are identified and set apart. It is a unilateral act of the seller alone to identify and isolate the goods.

b. When the Goods are Appropriated to the Contract

Appropriation is a process by which the goods to be delivered under the contract of sale are identified and isolated with the consent of the seller as well as the buyer. It is a bilateral act of the seller and the buyer to identify and isolate the goods. In other words, where the goods identified and isolated are put into boxes or any container with the consent of the buyer, it is called appropriation. eg. 'A' agrees to sell 'B' the oil to be produced by him. The oil was filled by 'A' into the bottles supplied by 'B'. It is an effective appropriation and the ownership of oil goods passes to the buyer when the oil is filled into the bottles. In this case, the buyer gave his consent to the appropriation by supplying the bottles.

c. Delivery to the Carrier

Where the seller delivers the goods to a carrier for the purpose of transmission to the buyer, he is deemed to have unconditionally appropriated the goods to the contract. But the only condition is that the seller should not have reserved the right of disposal of the goods.Where the railway receipt or the bill of lading is made out in the name of the buyer, the presumption is that the seller has not reserved the right of disposal of the goods. The property in such goods passes to the buyer immediately on delivering them to the carrier.

III. Goods Sent 'On Approval' or 'On Sale or Return' Basis

Goods sent on approval or on sale or return basis mean those goods in respect of which the buyer has option either to return or retain.

Sl. No	Rule	Time of Transfer of Ownership	Examples
1.	Where the buyer communicates his approval or acceptance	Ownership passes right from the time of communication of the approval	'A' offer to sell his scooter to 'B' and delivers it to 'B' for trial run for 2 days. 'B' communicates his acceptance after 2 days. In this case, ownership passes right from the time of his communication of his approval.
2.	Where the buyer does some act adopting the transaction	When the act of adoption is done	'A' delivered some jewellery to 'B' on sale or return basis. 'B' pledged the jewellery with 'C'. It was held that ownership of the jewellery had transferred to 'B' as he had adopted the transaction by pledging the jewellery with 'C'. In this case, A has no right against 'C'. He can only recover the price of the jewellery from 'B'.

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